



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8540 (EXTENSION)
FIRST REVISION March 10, 1981

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8540 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for Alan I. Roberts

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/10/97

(DATE)

Dist: USCG

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

July 22, 1996



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Washington, D.C. 20590

DOT-E 8540
(FIRST REVISION)

1. U.S. Navy (Naval Sea Systems Command), Washington, D.C., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain Oxidizing Material and Flammable Solid in transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of oxygen candles (NSN 4460-00-875-4568), and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Naval Sea Systems Command's telegraphic application dated December 3, 1980 and supplemental information dated January 28, 1981, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Sodium chlorate and barium peroxide classed as oxidizer, and red amorphous phosphorous classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Oxidizing material, n.o.s., and Phosphorous, amorphous, red.

5. REGULATION AFFECTED. 49 CFR 176.83(b) Table II.

MODES OF TRANSPORTATION AUTHORIZED. Cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is in accordance with Item 3 of Container Certification NA-81-500 dated January 23, 1981 issued by the Department of Navy, Naval Sea Systems Command in accordance with 49 CFR 173.7(a), viz: Outer packaging prescribed is triple wall corrugated fiberboard box (Style E-PPP-B-640) containing four inner combination packages each having two parts, as follows:

a. Chlorate candle in a round metal can, outside diameter not exceeding 7 inches, outside height not exceeding 12 inches, sealed so as to be opened by rotating key opening the tear strip.

b. Ignition device (nail head coated with phosphorous) enclosed in a metal foil type envelope or wrapped and sealed, one device packaged in a metal container (aluminum alloy cigar tube with screw cap) and sealed. One device secured to the outside of each candle can by two girthwise bands of pressure sensitive waterproof tape.

8. SPECIAL PROVISIONS.

a. Packages containing oxidizing material and flammable solid shipped in accordance with this exemption shall be segregated from other hazardous material in accordance with 49 CFR 176.83(b) Table II.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. December 1, 1982.

Issued at Washington, D.C.:

MAR 10 1981

(DATE)


Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, MTMC-DOD